



Notification Waiver Determination

Eldridge – Ausenco

Acquisition	Eldridge Ausenco MidCo 3, LLC, a wholly owned subsidiary of Eldridge Industries, LLC (Eldridge), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Ausenco Pty Ltd (Ausenco), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 August 2026

Parties to the Acquisition	The acquirer, Eldridge, is an investment holding company with a diversified portfolio, managing businesses and investing in various industries such as asset management, insurance, technology, sports and gaming and real estate. Headquartered in New York, Eldridge Industries has offices in Greenwich, London, and Beverly Hills with over 3,000 employees. The target, Ausenco, is an engineering, construction, consulting, and project delivery company, providing solutions for large-scale industrial and urban infrastructure projects. Headquartered in Brisbane, Australia, Ausenco has 21 offices in 9 countries, with projects taking place in over 100 locations worldwide. The company serves customers globally through locations in Canada, the United States, Chile, Mexico, Australia, Brazil, and Argentina among others. Ausenco's service offering includes consulting services, project delivery, operations and maintenance, and sustainability solutions to businesses operating in three primary industry sectors: minerals and metals; oil and gas; and industrial and infrastructure.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal overlap or vertical relationship between Eldridge (or its connected entities) and Ausenco in the supply of engineering and consulting services in Australia.

Notification waiver determination | Eldridge – Ausenco (WA-25043)

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act